

Here's how you know



FATCA information for governments

Alert: Updated Withholding Foreign Partnership (WP) and Withholding Foreign Trust (WT) agreements have been released and posted to the FATCA website. Both updated agreements are set out in [Revenue Procedure 2014-47](#), which updates and supersedes the WP and WT agreements originally released as Revenue Procedure 2003-64, 2003-2 C.B. 306.

FATCA current alerts and other news

- [Revenue Procedure 2014-38](#) provides an updated FFI agreement for participating FFIs and reporting model 2 FFIs
- The United States collaborated with other governments to develop two model intergovernmental agreements (IGAs) to implement FATCA.
- All IGAs contemplate that a partner government will require all foreign financial institutions (FFIs) located in its jurisdiction (that are not otherwise exempt) to identify U.S. accounts and report information about U.S. accounts.
- Both model 1 and model 2 IGAs can be implemented without having in effect a double tax convention or tax information exchange agreement with the United States.
- IGAs with partner jurisdictions facilitate the effective and efficient implementation of FATCA.
 - They remove domestic legal impediments to compliance.
 - They reduce burdens on FFIs located in partner jurisdictions.
- The [U.S. Department of Treasury's list of jurisdictions that are treated as having an intergovernmental agreement in effect](#) .
 - An FFI in a jurisdiction that is listed on the Treasury website as having an IGA agreed in substance should register on the FATCA registration website and certify its status to a withholding agent consistent with the treatment under the relevant model IGA. See [Announcement 2014-17](#).
- FFIs located in a Model 1 IGA jurisdiction (Reporting Model 1 FFIs) should register to obtain a GIIN, but they do not need to provide a GIIN to withholding agents until January 1, 2015, so they have additional time to register.
 - In some cases a Reporting Model 1 FFI - for example, if it maintains branches in jurisdictions not covered by a Model 1 IGA - may need to register earlier. See section 2.4 of the FATCA Registration User Guide.
- FFIs located in a Model 2 IGA jurisdiction (Reporting Model 2 FFIs) must register with the IRS and agree to comply with the terms of an FFI agreement.

- The list of FFIs that have completed registration and obtained a global intermediary identification number (GIIN) is available using the [FFI list search and download tool](#).
- An FFI that is located in a jurisdiction that is not treated as having in effect an IGA, to avoid being withheld upon under chapter 4, must register and agree to comply with the terms of an FFI agreement (See [model FFI agreement](#) [PDF](#)) or for registered deemed-compliant FFI status (See [section 1.1471-5\(f\)\(1\)](#) [PDF](#) [↗](#) of U.S. Treasury regulations) and to obtain a GIIN, unless it is able to qualify as a certified deemed-compliant FFI or an exempt beneficial owner.
 - An FFI may be able to modify its status after registration. For example, an FFI that is able to comply with the terms of an FFI agreement registers for Participating FFI status. The FFI may later modify its FATCA classification on the registration website to "Registered Deemed-Compliant Financial Institution" if the jurisdiction in which the FFI is located or resident has in effect a Model 1 IGA.

International data exchange

• Model 1 IGA:

- The partner jurisdiction agrees to report to the IRS specified information about the U.S. accounts maintained by all relevant FFIs located in the jurisdiction.
- FFIs identify U.S. accounts pursuant to due diligence rules contained in Annex I of the IGA.
- FFIs report specified information about their U.S. accounts to the partner jurisdiction.
- The partner jurisdiction, in turn, reports such information to the IRS on an automatic basis.
- The exchange of information under a Model 1 IGA may be on a reciprocal or nonreciprocal basis.
- Data Safeguarding: Jurisdictions signing a reciprocal Model 1A IGA with the United States will be asked to complete an International Data Safeguards & Infrastructure Workbook. The information in this workbook will facilitate the evaluation of safeguards and provisions regarding confidentiality, use, and infrastructure effectiveness prior to exchanging information. The United States' response to data safeguards is included in this workbook. See [safeguarding data](#).

• Model 2 IGA:

- The partner jurisdiction agrees to direct and enable all relevant FFIs located in the jurisdiction to report specified information about their U.S. accounts directly to the IRS.
- FFIs identify U.S. accounts pursuant to due diligence rules contained in Annex I of the IGA.
- FFIs report specified information about their U.S. accounts to the IRS.
- FFIs also report to the IRS aggregate information with respect to holders of pre-existing accounts who do not consent to have their account information reported, on the basis of which the IRS may make a "group request" to the partner jurisdiction for more specific information.

Please visit [Treasury's FATCA IGA resource center](#) [↗](#) for more information on the model IGAs, signed IGAs, and contact information on negotiating an IGA.

Questions about implementing an IGA? Please identify country name and [submit a question](#) [✉](#).

The [FATCA](#) webpage is updated on a regular basis with answers to FATCA questions submitted, but no direct responses will be made. You may submit a question here if you do not find the information you need elsewhere.

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